Phoenix Alexa France Octobre 25

Indicative Terms and Conditions

THE SECURITIES HAVE NOT BEEN AND WILL NOT BE REGISTERED UNDER THE U.S. SECURITIES ACT OF 1933 (AS AMENDED) AND ARE SUBJECT TO U.S. TAX REQUIREMENTS. THE SECURITIES MAY NOT BE OFFERED, SOLD OR DELIVERED AT ANY TIME, DIRECTLY OR INDIRECTLY, WITHIN THE UNITED STATES OR TO OR FOR THE ACCOUNT OR BENEFIT OF A U.S. PERSON.

THE SECURITIES ARE NOT DEPOSITS OR SAVINGS ACCOUNTS AND ARE NOT INSURED BY THE U.S. FEDERAL DEPOSIT INSURANCE CORPORATION OR ANY OTHER GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR DEPOSIT PROTECTION SCHEME ANYWHERE, NOR ARE THEY OBLIGATIONS OF, OR GUARANTEED BY, A BANK.

This document is a summary of the terms of the Notes and does not purport to be complete. This term sheet (and any other communication, whether oral or written, made in relation to the Notes), is subject to, and shall be superseded entirely by, the Final Terms (to be dated on or about the Issue Date of the Notes) in conjunction with the Base Prospectus for the Issuer's French Law Programme for the Issuance of Notes dated 20 June 2025, as supplemented to the Issue Date (the "**Base Prospectus**") in relation to the Notes. Copies of the Base Prospectus are available upon request from the Issuer and the Dealer. Terms used but not defined herein are as defined in the Base Prospectus.

This communication is an advertisement for the purposes of the Prospectus Regulation EU 2017/1129. The Base Prospectus and any supplements are available from the Issuer and the Dealer and at https://sp.morganstanley.com/EU/Documents and the Final Terms, when published, will be available from the Issuer and the Dealer and at https://sp.morganstanley.com/EU/Documents and the Key Information Document will be available from the Issuer and the Dealer and at https://sp.morganstanley.com/EU/Documents.

THESE NOTES ARE FOR DISTRIBUTION BY WAY OF PRIVATE PLACEMENT IN FRANCE ONLY - SEE SELLING RESTRICTIONS AND IMPORTANT INFORMATION AT THE END OF THIS MATERIAL FOR FULL DETAILS.

PRODUCT DETAILS:		DATES:	
Type	Note	**Trade Date**	30 September 2025
Issue Price	100%	**Issue Date**	20 October 2025
Principal	EUR 1,250,000	**Maturity Date**	20 October 2037
Settlement Currency	EUR		
Denomination / Calculation Amount (Par)	EUR 1,000		
ISIN	FRIP00001RD7		

GENERAL INFORMATION:	
Issuer	Morgan Stanley & Co. International plc
Issuer Rating	A+ (S&P), Aa3 (Moody's), AA- (Fitch)
Dealer and Determination Agent	Morgan Stanley & Co International plc, 25 Cabot Square, Canary Wharf, London E14 4QA, United Kingdom
Issuing and Paying Agent	Citi France

INTEREST AMOUNT:	
Coupon Amount	"Memory Barrier Conditional Coupon" is Applicable. The Issuer will pay on each Interest Payment Date an amount of interest equal to the relevant Coupon Amount, conditional on the Relevant Underlying Performance as of the relevant Interest Determination Date being less than or equal to the Coupon Barrier Value. The "**Coupon Amount**" will be an amount determined by the Determination Agent for an Interest Determination Date as follows:

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	(i) if the Relevant Underlying Performance as of the relevant Interest Determination Date is less than or equal to the Coupon Barrier Value: Coupon Amount= Calculation Amount × (Coupon Rate x NPED) - Prior Coupon Amount (ii) in any other case, zero. "**NPED**" means, as of any Interest Determination Date, the number of Period End Dates that have occurred (including such Interest Determination Date) as determined by the Determination Agent. "**Period End Dates**" means the Interest Determination Dates. "**Prior Coupon Amount**" means, for each Interest Determination Date, the sum of all Coupon Amounts determined for preceding Interest Determination Dates (if any).
Barrier Observation Dates	Each Interest Determination Date.
Coupon Rate	7.20 per cent
Coupon Barrier Value	3.80 per cent.
Interest Determination Dates	Five TARGET Settlement Days prior to each Interest Payment Dates
Interest Payment Dates	20 October of each calendar year from, and including 20 October 2026 to, and including, the Maturity Date, subject to adjustment in accordance with the Business Day Convention.
Relevant Underlying Performance	Basic Performance: Applicable Performance = Performance Rate x ((Final Reference Value / Initial Reference Value) – Strike) Where: "**Performance Rate**" means 100%. "**Final Reference Value**" means TEC10. "**Initial Reference Value**" means 1. "**Strike**" means 0.
TEC10 (the "Underlying Reference Rate)	"**TEC10**" means, in respect of an Interest Period, a rate determined by the Determination Agent, being the level of the 10-year constant maturity treasury rate (known as CNO TEC10) provided by Bank of France as the Administrator and published as of 11:30, Paris time on the applicable Interest Determination Date for such Interest Period, as determined in accordance with the 2021 ISDA Definitions. Information on TEC10, on the past and future performance of TEC10 and its volatility can be obtained on the public website https://www.aft.gouv.fr/en/tec-10-oat and on the Bloomberg page BFRTEC10 Index. The TEC10 index constitutes proprietary data of the Banque de France. The Banque de France shall not be held liable for any errors or inaccuracies in the CNO-TEC indices, nor for any delays in updating the CNO-TEC© index. Similarly, it shall not incur any liability related to the use of the index in any financial instrument, contract, transaction, or any other commercial activity or investment decision. The Banque de France disclaims all liability for any direct or indirect loss or damage, costs, or claims resulting from the use of the CNO-TEC© indices.
TEC10 Adjustment	Applicable If in respect of any Interest Period, the Determination Agent determines that the 10-year constant maturity French treasury rate (known as CNO TEC10) published by the Bank of France no longer represents the actual yield to maturity of a notional Obligations assimilables du Trésor (OAT) with a maturity of exactly 10 years (based on executable prices available to the Determination Agent for OATs with a maturity most closely matching a 10-year maturity) (which event may occur in connection with or following any default or potential default of the Republic of France or unexpected volatility or illiquidity in markets in trading of OATs), then the ISDA Rate shall not be calculated in accordance with this Condition 14.2 (ISDA Determination) and instead the ISDA Rate in respect of such Interest Period for the purposes of the Conditions shall be deemed to be the yield to maturity of a notional OAT with a maturity of exactly 10 years, as determined by the Determination Agent acting in good faith and a commercially reasonable manner by reference to bid prices for OATs with a maturity most closely matching a 10-year maturity and having regard

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	to such pricing sources, methods and models (which may include, without limitation, any available firm or indicative prices for such OATs or internal valuation or recovery models) as the Determination Agent considers appropriate.

AUTOMATIC EARLY REDEMPTION:	
Automatic Early Redemption Event	Barrier Automatic Early Redemption: Applicable If the Determination Agent determines that the Relevant Underlying Performance, as of any Automatic Early Redemption Valuation Date, is equal to or less than the Autocall Barrier Value in respect of such date, then (unless the Notes have been previously redeemed or purchased and cancelled in accordance with the Conditions) an Automatic Early Redemption Event shall be deemed to have occurred and the Issuer shall redeem the Notes on the immediately following Automatic Early Redemption Date at the Automatic Early Redemption Amount for such Automatic Early Redemption Valuation Date being an amount per Calculation Amount determined by the Determination Agent in accordance with the following formula: Automatic Early Redemption Amount = Autocall Early Redemption Rate x Calculation Amount Where: "**Automatic Early Redemption Dates**" means 20 October of each calendar year from, and including 20 October 2026 to, and including, 20 October 2036. "**Autocall Early Redemption Rate**" means 100%. "**Automatic Early Redemption Valuation Dates**" means each Interest Determination Date immediately prior to the relevant Automatic Early Redemption Date. Each Automatic Early Redemption Date is subject to adjustment as provided by the Business Day Convention.
Relevant Underlying Performance	Basic Performance: Applicable Performance = Performance Rate x ((Final Reference Value / Initial Reference Value) – Strike) Where: "**Performance Rate**" means 100%. "**Final Reference Value**" means TEC10 (as defined above). "**Initial Reference Value**" means 1. "**Strike**" means 0.
Autocall Barrier Value	2.95%

EARLY REDEMPTION:	
Early Redemption Amount following Event of Default	Theoretical Value
Early Redemption Amount(s) payable on redemption for illegality and regulatory event	Early Redemption Amount (Illegality and Regulatory Event) – Fair Market Value
Early Redemption Amount(s) payable on redemption for taxation reasons	Fair Market Value

FINAL REDEMPTION AMOUNT:	
Final Redemption Amount	100% of Par

FURTHER INFORMATION:	
Notices	All notices concerning the Notes will be published on the internet on website www.sp.morganstanley.com/eu or any successor website hereto.

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Settlement Type	Cash
Business Days	London, New York and TARGET
Business Days Convention	Modified Following Business Day Convention
Implementation of Financial Transaction Tax Event	Applicable The Issuer will not be required to gross-up any payments due under the Notes that are affected by any withholding taxation (including any withholding tax that may be imposed on any payment under the Notes). In addition, as further set out in Condition 19.3, the Issuer may adjust downwards any amount payable and/or any other value or term of the Conditions to account for the economic impact of the implementation of a financial transaction tax on the Issuer and/or its Affiliates in relation to the Notes or for any additional losses the Issuer and/or its Affiliates may incur as a result of such financial transaction tax. The Noteholder should seek advice based on its particular circumstances from an independent tax advisor.
Settlement	Euroclear, France
Listing	Application is expected to be made by the Issuer (or on its behalf) for the Notes to be admitted to trading on the Luxembourg Stock Exchange's Regulated Market and to be listed on the official list of the Luxembourg Stock Exchange with effect from this Issue Date. No assurances can be given that such application for listing and/or admission to trading will be granted (or, if granted, will be granted by the Issue Date. The Issuer has no duty to maintain the listing (if any) of the Notes on the relevant stock exchange(s) over their entire lifetime.
Form	Bearer dematerialised form (*au porteur*)
Governing Law	French Law
Potential Section 871(m) Witholding:	Not Applicable
Market Making	Under normal market conditions, and subject to applicable law and regulations and Morgan Stanley internal policy, Morgan Stanley & Co. International plc or its affiliates will use reasonable efforts to quote bid and offer prices of 1%. However, Morgan Stanley & Co. International plc or its affiliates will not be legally obliged to do so.
Fees:	In connection with the offer and sale of the Notes, the Issuer, the Distribution Agent or their affiliates will pay to the distributor a one time or recurring distribution fee. The total distribution fees payable, will not exceed 0.50% p.a. Further information is available from the distributor upon request.

Any Intermediary based in the EEA is obliged to disclose to investors the existence, nature and amount of such commission or fee. Investors should ensure that they have been informed about any fee or commission arrangements by the Intermediary before making any purchase of the relevant securities. No fees or other remuneration can be paid to any intermediary in relation to any Securities purchased by a UK retail client who has received a personal recommendation from such intermediary to purchase the Securities and accordingly the Securities may not be offered or sold to UK retail clients in such circumstances.

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RISKS FACTORS

Potential investors are urged to consult with their legal, regulatory, investment, accounting, tax and other advisors with regard to any proposed or actual investment in the Notes and to review the Base Prospectus.

Please see the Base Prospectus together with the Final Terms for a full detailed description of the Notes and in particular, please review the Risk Factors associated with these Notes. Investing in the Notes entails certain risks including, but not limited to, the following:

Structure Specific Risks

Capital protection at maturity: Capital protection is provided at maturity only. If the Notes are sold prior to maturity, or redeemed by the Issuer for reasons stated in the Base Prospectus, this document and the Final Terms, the proceeds may be less than the initial investment. The Notes will be capital guaranteed 100% of the Principal Amount since the terms and conditions of the Notes will provide that the redemption amount per Note at maturity is an amount equivalent to the denomination of such Note.

Memory Barrier Conditional Coupon: The Issuer will only pay an amount of interest in respect of the Notes if the performance of TEC10 (as defined above) (the "**Underlying**") as of a relevant Barrier Observation Dates is less than or equal to the Coupon Barrier Value. If such condition is not satisfied, no such interest will be payable in respect of such Barrier Observation Date. The interest amount payable on the Notes is linked to the performance of the Underlying as of the relevant Barrier Observation Dates and irrespective of the level of the Underlying between these Barrier Observation Dates, the performance of the Underlying on these Barrier Observation Dates will affect the value of the Notes more than any other factor. The amount of interest to be accrued if such barrier condition is satisfied will be an amount which is increased on each successive Interest Determination Date but from which is deducted the sum of all interest accrued in respect of prior Interest Determination Dates. Accordingly, if the interest accrued in respect of an Interest Determination Date (two or more successive Interest Determination Dates) is zero, the interest accrued in respect of the next following Interest Determination Date (if any) where such condition is satisfied will be in an increased amount which will equal the sum of the amounts which would have accrued had such condition been satisfied in respect of both (or all) such Interest Determination Dates, but without any interest or other allowance for the deferred accrual.

Automatic Early Redemption: The Notes are subject to early redemption following the occurrence of an Automatic Early Redemption Event. The term of the Notes may be limited by the Automatic Early Redemption on each date specified above. As a result, the term of the investor's investment in the Notes may be limited which would limit the investor ability to receive the Memory Barrier Conditional Coupon over the full term of the Notes. It is more likely that the Notes will redeem when it would be advantageous for investors to continue to hold the Notes. If the Notes are redeemed prior to maturity, the investor may be forced to invest in a lower interest rate environment and may not be able to reinvest at comparable terms or returns.

Underlying Specific Risks

The historical levels of the Underlying are not an indication of future levels of the Underlying. Historical levels of the Underlying should not be taken as an indication of its future performance during the term of the Notes. Changes in the levels of the Underlying will affect the trading price of the Notes, but it is impossible to predict whether such levels will rise or fall.

The Underlying will be affected by a number of factors. A number of factors can affect the Underlying, including but not limited to: (i) changes in, or perceptions about the future of, the level of the Underlying; (ii) general economic conditions: the economic, financial, political, regulatory and judicial events that affect financial markets generally will affect the Underlying; (iii) prevailing interest rates: the Underlying is subject to daily fluctuations depending on prevailing interest rates in the market generally; and (iv) policies of the governing bodies regarding interest rates. These and other factors may have a negative impact on the amount of interest payable on the Notes and on the Notes and on the value of the Notes prior to maturity.

The Underlying may be volatile. The Underlying represents the actuarial yield rate of a hypothetical French government bonds with a constant maturity of 10 years and is therefore subject to volatility due to a variety of factors affecting interest rates generally, including but not limited to: (i) changes to the financial condition or credit rating of the French government, (ii) the actual or perceived credit quality of the French government, (iii) sentiment regarding the French, EU and global economies; (iv) expectations regarding the level of price inflation; (v) sentiment regarding credit quality in the French, EU and global credit markets; (vi) central bank policy regarding interest rates; and (vii) performance of capital markets. Further, instruments with longer durations, such as a 10Y French government bonds, tend to be more sensitive to interest rate changes, usually making them more volatile than instruments with shorter durations. The Underlying may be volatile, and even a very small absolute change in the level of the Underlying over the term of the Notes can result in a significant loss on the Notes. Accordingly, volatility of the Underlying may adversely affect your return on the Notes.

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Administrator/Benchmark Event: The administrator or sponsor of an Underlying (or the Underlying itself) may be required to be authorised, registered, recognised, endorsed, the subject of an equivalence decision, approved or otherwise included in an official register in order for the Issuer or the Determination Agent to be permitted to use it and perform their respective obligations under the Notes. If the Determination Agent determines that such a requirement applies to the administrator or sponsor (or the Underlying) but it has not been satisfied then an "Administrator/Benchmark Event" will occur and the Determination Agent or the Issuer may then apply certain fallbacks. These fallbacks may mean that the Determination Agent makes adjustments to the terms of the Notes, including substitution of the relevant Underlying with the 'Alternative Pre-nominated Index' (if any) specified for the Underlying, or to redeem the Notes.

Potential investors should see the Base Prospectus for a detailed description of what constitutes an Administrator/Benchmark Event and the applicable 'fallback' provisions that may apply if such event occurs.

Hedging Risk: On or prior to and after the Trade Date, the Issuer, through its affiliates or others, will likely hedge its anticipated exposure under the Notes by taking positions in the Underlying, in option contracts on the Underlying or positions in any other available securities or instruments. In addition, the Issuer and its affiliates trade the Underlying as part of their general businesses. Any of these activities could potentially affect the value of the Underlying, and accordingly, could affect the payment to holders on the Notes.

Adjustment and Discontinuation Risk: The administrator or sponsor of the Underlying can make methodological changes that could change the value of the Underlying without regard to the interests of holders of the Notes. Any of these decisions/determinations may adversely affect the value of the Notes and may result in the investor receiving a return that is materially different from what he/she would have received if the event had not occurred.

Adjustments by the Determination Agent: The terms and conditions of the Notes will allow the Determination Agent to make adjustments or take any other appropriate action if circumstances occur where the Notes or the Underlying are affected by market disruption, adjustment events or circumstances affecting normal activities.

In addition, other circumstances may occur which either increase the liability of the Issuer fulfilling its obligations under the Notes or increase the liability of any hedging activities related to such obligations, including without limitation the adoption of or any change in any tax law relating to a common system of financial transaction tax in the European Union or otherwise.

In such circumstances, the Determination Agent can in its sole and absolute discretion determine whether to redeem the Notes early, or adjust the terms of the Notes. The Determination Agent is not required but has the discretion to make adjustments with respect to each and every market disruption event. Potential investors should see the Base Prospectus for a detailed description of potential adjustment events and adjustments.

Liquidity Risk

Liquidity Risk: The Notes are not liquid instruments and investors may not be able to sell the Notes easily. Investors should be prepared to hold the Notes until the Maturity Date. If the investor wishes to sell the Notes prior to the Maturity Date, the investor may not receive the entire invested amount. The Dealer or its affiliates may, from time to time, make a market in the Notes, but they are not required to do so. If at any time the Dealer or its affiliates were to cease making a market in the Notes, it is likely that there would be little to no secondary market for the Notes. Even if there is a secondary market, a lack of liquidity or low trading volumes in the market for the Notes could result in a decrease of the market value of the Notes.

Potential Conflicts of Interest

Potential Conflicts of Interest: The Determination Agent, which is an affiliate of the Issuer (or may be the Issuer itself), will make determinations with respect to the Notes. Any of these determinations may adversely affect the payout to investors. MSI plc and its affiliates may trade the Underlying on a regular basis as part of its general broker-dealer business and may also carry out hedging activities in relation to the Notes. Any of these activities could influence the Determination Agent's determination of adjustments made to any Notes and any such trading activity could potentially affect the price of the Underlying and, accordingly, could affect the investor's payment on any Notes.

Our affiliates may publish research that could affect the market value of the Notes: One or more of our affiliates may, at present or in the future, publish research reports with respect to movements in interest rates generally or the Underlying specifically. This research is modified from time to time without notice to you and may express opinions or provide recommendations that are inconsistent with purchasing or holding the Notes. Any of these activities may affect the market value of the Notes.

Exit Risk

Exit Risk: Any secondary market price of the Notes will depend on many factors, including the level and volatility of the Underlying, interest rates, time remaining to maturity and the creditworthiness of the Issuer. The secondary market price may be lower than the market value of the issued Notes as at the Issue Date to take into account amounts paid to distributors and other intermediaries relating to the issue and sale of the Notes as well as amounts relating to the hedging of the Issuer's obligations. As a result of all of

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these factors, the holder may receive an amount in the secondary market which may be less than the then intrinsic market value of the Notes and which may also be less than the amount the holder would have received had the holder held the Notes through to maturity.

Issuer Specific Risks

Credit Risk: Investors are exposed to the credit risk of the Issuer. The Notes are essentially a loan to the Issuer that the Issuer promises to pay to you at maturity. There is the risk, however, that the Issuer may not be able to fulfil its promise to you. If any companies in the Morgan Stanley group incur losses with respect to any of their activities, this may have a negative impact on the financial condition of the Issuer. You may lose all or part of your investment if the Issuer is unable to pay the coupons or the redemption amount and/or becomes insolvent. No assets of the Issuer are segregated and specifically set aside in order to pay the holders of the Notes in the event of the insolvency of the Issuer, and the holders of the Notes will rank behind creditors who have priority rights over certain assets of the Issuer.

Other Risks

Tax and Accounting Considerations: Special tax and/or accounting considerations may apply to certain types of holders. Prospective investors are urged to consult with their own tax advisors and accounting advisors to determine any tax or accounting implications of this investment.

SELLING RESTRICTIONS

This term sheet and the Notes described herein may be distributed in FRANCE only. No public offer or subsequent distribution of the Notes in any Member State of the European Economic Area or the United Kingdom is permitted.

This term sheet may not be used for the purpose of any offer or solicitation by anyone in any jurisdiction in which that offer or solicitation is not authorized or to any person to whom it is unlawful to make such an offer or solicitation. No offer of the Notes to the public may be made except in circumstances which do not result in any breach of Regulation (EU) 2017/1129 (the "**Prospectus Regulation**") and Article L.411-2-1 ° of the French Monetary and Financial Code by the Issuer, the Dealer and their respective affiliates and for this purpose an offer shall not be treated as not requiring the publication of a prospectus pursuant to Article 3 of the Prospectus Regulation solely by virtue of the application of Article 1(4)(b) of the Prospectus Regulation (offer to fewer than 150 persons).

The Notes have not been and will not be registered under the U.S. Securities Act of 1933, as amended, or the securities laws of any State in the United States, and are subject to U.S. tax requirements. The Notes may not be offered, sold or delivered at any time, directly or indirectly, within the United States (which term includes the territories, the possessions and all other areas subject to the jurisdiction of the United States of America) or to or for the account of a U.S. Person (as defined in Regulation S under the Securities Act of 1933, as amended). In purchasing the Notes, you represent and warrant that you are neither located in the United States nor a U.S. Person and that you are not purchasing for the account or benefit of any such person.

PRODUCT GOVERNANCE REQUIREMENTS

Unless otherwise agreed in a separate distribution agreement, Morgan Stanley & Co International plc (for the purposes of this section, the "**Manufacturer**") (solely or, together with an affiliate) and the distributor of the Notes (the "**Distributor"**) agree and undertake as follows:

The Manufacturer (directly or, when the product is sold via an affiliate, in conjunction with such affiliate) will identify the potential target market of end investors for the Notes by specifying the type(s) of client for whose needs, characteristics and objectives the Notes could, based on its theoretical knowledge of and past experience with the Notes or similar Notes, be compatible (the "**Potential Target Market**"). The Potential Target Market will also include, where appropriate, information on any group(s) of investors for whose needs, characteristics and objectives the Notes are not compatible. The Potential Target Market will be communicated to the Distributor by the Manufacturer (directly or, when the product is sold via an affiliate, by such affiliate), as agreed on a trade-by-trade basis.

The Distributor will, taking into account the Potential Target Market, identify a specific target market for the Notes (the "**Specific Target Market**") and ensure that the Notes that it intends to offer or recommend are compatible with the needs, characteristics and

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objectives of such Specific Target Market. The Specific Target Market will also include, where appropriate, information on any group(s) of investors for whose needs, characteristics and objectives the Notes are not compatible.

The Distributor will:

- on an on-going basis throughout the life of the Notes, raise with the Manufacturer (directly or, when the product is sold via an affiliate, to such affiliate) any issue of material discrepancy or incompatibility between the Specific Target Market and the Potential Target Market;
- ensure that the Notes are promoted, marketed and/or distributed to and through channels that are compatible with the Specific Target Market;
- review the Notes and related services that it offers, on a regular basis, taking into account any event that could materially affect the Specific Target Market in order to make sure that the Notes remain consistent with the needs, characteristics and objectives of the Specific Target Market; and
- provide the Manufacturer (directly or, when the product is sold via an affiliate, to such affiliate) with requested management information (including information on sales including any sales made outside the Specific Target Market).

INVESTOR REPRESENTATIONS

Any investment in the Note made with the intention to offer, sell or otherwise transfer (together, "**distribute**" and each a "**distribution**") such product to prospective investors will be deemed to include, without limitation, the following representations, undertakings and acknowledgements:

(i) you shall only distribute as principal or, alternatively, acting as an agent on behalf of your unnamed principals and will not do so as agent for any Morgan Stanley entity (together "**Morgan Stanley**") who shall assume no responsibility or liability whatsoever in relation to any such distribution. You shall distribute the product in your own name and to such customers as you identify in your own discretion, at your own risk and under your sole responsibility. You shall make such enquiries you deem relevant in order to satisfy yourself that the Notes are appropriate or suitable for each of the prospective investors and that the prospective investors (a) have the requisite capacity and authority to purchase the Note and (b) understand the risks and are capable of assessing and assuming the risks associated with an investment in the Note;

(ii) you shall not make any representation or offer any warranty to investors regarding the Note, the Issuer or Morgan Stanley or make any use of the Issuer's or Morgan Stanley's name, brand or intellectual property which is not expressly authorized and you shall not represent you are acting as an agent of Morgan Stanley in such distribution. You acknowledge that neither the Issuer nor Morgan Stanley assume any responsibility or liability whatsoever in relation to any representation or warranty you make in breach hereof;

(iii) if you distribute any material prepared and transmitted by the Issuer or by Morgan Stanley, you shall only distribute the entire material and not parts thereof. Any material you, or any third party you engage on your behalf, prepare shall be true and accurate in all material respects and consistent in all material respects with the content of the Base Prospectus and the Final Terms and shall not contain any omissions that would make them misleading. You shall only prepare and distribute such material in accordance with all applicable laws, regulations, codes, directives, orders and/or regulatory requirements, rules and guidance in force from time to time ("Regulations"). You acknowledge that neither the Issuer nor Morgan Stanley shall have any liability in respect of such material which shall, for the avoidance of doubt, at all times be your sole responsibility;

(iv) you will not, directly or indirectly, distribute or arrange the distribution of the product or disseminate or publish (which for the avoidance of doubt will include the dissemination of any such materials or information via the internet) any materials or carry out any type of solicitation in connection with the product in any country or jurisdiction, except under circumstances that will result in compliance with all applicable Regulations and selling practices, and will not give rise to any liability for the Issuer or Morgan Stanley. For the avoidance of doubt, this includes compliance with the selling restrictions mentioned herein and all applicable sanctions laws and programs, including without limitation the U.S. Department of Treasury's Office of Foreign Assets Control;

(v) To the extent that MSIP or its affiliates pay to you and/or any of your affiliates any fee, commission or non-monetary benefit ("**Remuneration"**), you represent and warrant to us each time you and/or any of your affiliates receive such Remuneration, that you and/or your affiliates are entitled to receive such Remuneration in accordance with all applicable laws, regulatory requirements, or regulation, contract, fiduciary obligations or otherwise). If, in relation to the Notes, you are providing investment advice on an independent basis or portfolio management to a potential investor, you will transfer any

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Remuneration received by from Morgan Stanley to the potential investor as soon as reasonably possible after receipt, in all cases as required by and in accordance with applicable laws and regulations.

If, for any reason and at any time, you and/or your affiliates are not entitled to receive and/or retain such Remuneration, you shall notify us immediately in writing.

To the extent that MSIP or its affiliates pay Remuneration to you and/or any of your affiliates, you represent and warrant that such Remuneration does not relate to and/or is not calculated in respect of an advised sale made to a retail client (as defined in the FCA Handbook) based in the United Kingdom (whether or not through agents acting on your or their behalf such as platforms, financial advisers and/or portfolio managers) or where you are undertaking portfolio management. You agree to inform the Issuer or Morgan Stanley of such distribution to UK retail clients.

You acknowledge that where Remuneration is payable, the Issuer and Morgan Stanley are obliged to disclose the amounts and/or basis of such Remuneration.

(vi) you agree and undertake to indemnify and hold harmless and keep indemnified and held harmless the Issuer, the Dealer and each of their respective affiliates and their respective directors, officers and controlling persons from and against any and all losses, actions, claims, damages and liabilities (including without limitation any fines or penalties and any legal or other expenses incurred in connection with defending or investigating any such action or claim) caused directly or indirectly by you or any of your affiliates or agents as a result of non-compliance with any of the provisions set out in (i) to (v) above, or as a result of acting otherwise than as required or contemplated herein.

Additional Investor Representations

(i) You acknowledge and agree that your prospective investors and any person to whom you on-sell any Notes (whether or not identified to Morgan Stanley) will remain your sole responsibility and will not become clients or customers of Morgan Stanley.

(ii) You agree to carry out distribution activity and only purchase or procure the purchase of the Notes in compliance with all applicable laws, rules, guidance, regulations, codes of conduct and selling practices, including, but not limited to investment intermediaries laws, prospectus and public offer laws, anti-money laundering laws and regulations, anti-corruption laws and tax evasion laws and regulations in your home jurisdiction and in any jurisdiction where you will carry out distribution activity and with sanctions administered by the European Union ("EU"), United Nations ("UN"), His Majesty's Treasury of the United Kingdom ("HMT") or the U.S. Office of Foreign Assets Control ("OFAC").

(iii) You (and each of your clients, where necessary) have obtained (prior to any distribution) all requisite authorisations, licenses, consents and regulatory approvals to enter into this transaction and all such regulatory approvals are valid and subsisting, have not been revoked and remain in full force and effect.

YOU AGREE THAT THE REPRESENTATIONS, UNDERTAKINGS AND ACKNOWLEDGEMENTS IN THIS DOCUMENT ARE BINDING ON YOU WITH RETROSPECTIVE EFFECT AS OF THE TRADE DATE.

To the extent there is any conflict between these deemed representations and warranties and any terms included in a signed distribution agreement between us, the terms of such distribution agreement shall apply.

IMPORTANT INFORMATION

Morgan Stanley is not qualified to give legal, tax or accounting advice to its clients and does not purport to do so in this document. Clients are urged to seek the advice of their own professional advisers about the consequences of the proposals contained herein.

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commit our capital in relation to either ongoing management of inventories used to facilitate clients, or in relation to providing you with quotes we may make use of that information to enter into transactions that subsequently enable us to facilitate clients on terms that are competitive in the prevailing market conditions. Past performance is not necessarily indicative of future results. Price and availability of the Notes are subject to change without notice. This memorandum is not a product of Morgan Stanley's Research Department and you should not regard it as a research report.

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